

Calendar Line 6

Case Name: *Zededa Inc. vs Broadcom, Inc et al.*

Case No.: 25CV472413

ORDER ON DEFENDANT BROADCOM INC.'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES AND REQUESTS FOR PRODUCTION**I. Background**

Broadcom served Special Interrogatories, Set One, and Requests for Production of Documents, Set One, on Zededa on September 15, 2025. Zededa served initial responses on November 12, 2025, and supplemental or amended responses on February 20, 2026. Broadcom moves to compel further responses to Special Interrogatories Nos. 46 through 67 and Requests for Production Nos. 21, 22, 24, 26, 28, 30, and 32.

The discovery at issue concerns Zededa's alleged costs, work, personnel, documents, customers, and agreements relating to the Vendor Software, Vendor Hosted Services, Vendor Documentation, and Product Requirements at issue in this action. Zededa alleges, among other things, that it expended substantial resources to create and deliver work product to VMware and seeks damages arising from the alleged breach of the Integrated Hosted Service Agreement and related theories.

Broadcom contends that the discovery is relevant to Zededa's alleged performance, costs, reliance damages, and Broadcom's defenses, and that Zededa's responses are evasive, incomplete, improperly numbered, or based on unsupported objections. Zededa opposes, arguing that Broadcom did not adequately meet and confer, that the requested third-party customer and agreement information is irrelevant and protected as confidential or trade secret information, that its cost responses are sufficient, and that any misnumbering could have been corrected without motion practice.

II. Meet and Confer

The Court finds that Broadcom satisfied the meet-and-confer requirement for purposes of this motion. The record reflects substantial written meet-and-confer efforts over several months, including a detailed December 15, 2025 letter, follow-up correspondence, extensions of time, and further communications after Zededa served supplemental responses. Although Zededa contends that additional telephonic, in-person, or videoconference efforts should have occurred after the supplemental responses, the record demonstrates that the parties' positions concerning the disputed discovery were substantially developed and that further informal efforts were not reasonably likely to resolve the dispute in full.

The motion is therefore not denied on meet-and-confer grounds.

III. Governing Standards

A party may move for an order compelling a further response to interrogatories where an answer is evasive or incomplete, where an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, or where an objection is without merit or too general. An interrogatory answer must be complete and straightforward to the extent information is reasonably available to the responding party.

A party may move for an order compelling a further response to a demand for inspection, copying, testing, or sampling where the response is incomplete or evasive or an objection is without merit or too general. The moving party must establish good cause for the discovery sought.

The party resisting discovery bears the burden of justifying its objections. Where confidentiality or trade-secret concerns are asserted, the Court may consider whether those concerns can reasonably be addressed through an appropriate protective order rather than by withholding otherwise discoverable information.

IV. Special Interrogatories Nos. 46 and 47

Special Interrogatory No. 46 asks Zededa to identify each customer, client, or licensee to whom it sold, licensed, or provided the Vendor Software from January 1, 2019 to the present. Special Interrogatory No. 47 asks for the same information concerning Vendor Hosted Services.

Zededa asserted objections including the 35-interrogatory limit, relevance, privilege, confidential business information, privacy, vagueness, burden, overbreadth, compilation, and subparts, and did not provide substantive responsive customer, client, or licensee information.

The objections are overruled. The requested information is relevant to Zededa's allegations concerning the work performed, customization, performance, and damages and to Broadcom's ability to determine whether the work claimed by Zededa was specific to VMware or involved pre-existing products, services, or work performed for other customers. The interrogatories are limited by subject matter and time period, and Zededa has not made a sufficient factual showing of burden, oppression, or overbreadth.

The confidentiality and trade-secret objections do not justify a categorical refusal to provide responsive information. The existing confidentiality order provides a mechanism for protecting confidential business and trade-secret information, and Zededa has not demonstrated that the protections available under that order are inadequate.

The motion is GRANTED as to Special Interrogatories Nos. 46 and 47. Zededa shall serve further verified responses identifying the responsive customers, clients, or licensees, subject to appropriate confidentiality designations under the existing confidentiality order.

V. Special Interrogatories Nos. 48 and 49

Special Interrogatory No. 48 asks Zededa to identify each agreement entered into from January 1, 2019 to the present relating to the sale, licensing, or provision of Vendor Software. Special Interrogatory No. 49 asks for the same information concerning Vendor Hosted Services.

Zededa asserted substantially the same objections as to Special Interrogatories Nos. 46 and 47 and did not provide substantive identifying information.

The objections are overruled. The requested information is relevant to whether the products and services at issue were unique to VMware, whether similar products or services were provided to other customers, and whether Zededa's asserted work, costs, and damages are attributable to VMware-specific customization. The requests are limited by subject matter and time period.

The privilege objection does not justify a wholesale refusal to answer interrogatories seeking the identity and basic information concerning commercial agreements rather than the substance of privileged communications. To the extent responsive information is confidential, it may be protected under the existing confidentiality order.

The motion is GRANTED as to Special Interrogatories Nos. 48 and 49. Zededa shall serve further verified responses identifying the responsive agreements, subject to appropriate confidentiality designations under the existing confidentiality order.

VI. Special Interrogatories Nos. 50, 51, 54, 55, 58, 59, 60, 61, 64, and 65

Special Interrogatories Nos. 50, 54, 58, 60, and 64 ask Zededa to state with particularity its costs to customize the Vendor Software, Vendor Hosted Services, Vendor Documentation, Vendor Software to satisfy Product Requirements, and Vendor Hosted Services to satisfy Product Requirements. Special Interrogatories Nos. 51, 55, 59, 61, and 65 ask Zededa to state with particularity the methodology used to calculate those costs.

Zededa provided a repeated narrative identifying, among other things, Azure monthly costs of \$4,100, monthly COGS costs of \$1,900, three-year production software and hardware costs of \$216,000, support costs resulting in \$259,000, certain VMware-requested features, five man-years across development, system testing, and SRE, project integration costs of \$1 million, and total costs of \$1.259 million.

The Court finds the responses incomplete. Zededa has provided some substantive information, and the responses are not deficient merely because the stated costs do not equal the alleged \$3.3 million contract amount. The issue is that the interrogatories seek the costs and calculation methodologies with particularity, and Zededa's repeated narrative does not separately answer each interrogatory, adequately allocate the asserted costs among the categories requested, or provide sufficient information concerning the factual basis for the calculations, the work performed, the applicable time periods, the personnel involved, or the methodology used to allocate costs.

The motion is therefore GRANTED as to Special Interrogatories Nos. 50, 51, 54, 55, 58, 59, 60, 61, 64, and 65. Zededa shall serve further verified responses separately answering each interrogatory and stating, to the extent reasonably available, the costs or calculation methodology for each category requested, including the factual basis for the response, any allocation methodology used, persons with knowledge, and documents supporting the stated costs or methodology. Zededa is not required to make its cost figures equal the contract price;

it is required to provide complete and straightforward responses to the interrogatories propounded.

VII. Special Interrogatories Nos. 52, 56, 62, and 66

Special Interrogatories Nos. 52, 56, 62, and 66 ask Zededa to identify persons involved in customizing the Vendor Software or Vendor Hosted Services specifically for VMware or to satisfy the Product Requirements.

Zededa's supplemental responses included a list of persons for at least one response, but the responses were misnumbered or did not clearly correspond to the interrogatories as served. Zededa acknowledges that its supplemental responses inadvertently contained numbering errors.

The defect is not merely technical. The responses must be sufficiently identified and organized to permit the propounding party and the Court to determine which response corresponds to which interrogatory. Here, the numbering and correspondence problems prevent that determination.

The motion is GRANTED as to Special Interrogatories Nos. 52, 56, 62, and 66. Zededa shall serve further verified responses that are properly numbered and correspond to each interrogatory. To the extent a previously served list is responsive to a particular interrogatory, Zededa may repeat that information under the correct interrogatory number, provided that the response expressly confirms that the information constitutes a complete response to the interrogatory.

VIII. Special Interrogatories Nos. 53, 57, 63, and 67

Special Interrogatories Nos. 53, 57, 63, and 67 ask Zededa to identify documents relating to customization of the Vendor Software or Vendor Hosted Services specifically for VMware or to satisfy Product Requirements, including source-code materials, version-control records, design and specification documents, change-management records, testing records, project-management materials, and communications.

Zededa invoked the option to produce documents, stating that it would produce responsive, nonprivileged documents subject to the confidentiality order from which Broadcom could audit, inspect, copy, or summarize.

The responses are insufficient. A party electing to produce writings in lieu of an interrogatory answer must specify the writings from which the answer may be ascertained with sufficient particularity to permit the propounding party to locate and identify those writings as readily as the responding party can. A general reference to responsive documents, including documents produced with amended responses, is insufficient.

The motion is GRANTED as to Special Interrogatories Nos. 53, 57, 63, and 67. Zededa shall serve further verified responses that either provide the information requested or specify the responsive writings by Bates number or other sufficiently precise description.

IX. Requests for Production Nos. 21 and 22

Request for Production No. 21 seeks each agreement from January 1, 2019 to the present relating to the sale, licensing, or provision of Vendor Software. Request for Production No. 22 seeks the same category of agreements concerning Vendor Hosted Services.

Zededa objected on grounds including privilege, confidential business information, vagueness, overbreadth, relevance, lack of reasonable particularity, oppression, and subparts.

Good cause exists for the requested discovery. The agreements are relevant to Zededa's claims and Broadcom's defenses concerning the nature of the products and services, whether the asserted work was VMware-specific, whether similar products or services were provided to others, and whether Zededa's asserted costs and damages are properly attributable to the VMware project. The requests are limited by product or service category and time period. Zededa has not made a sufficient factual showing that the burden or intrusiveness of production outweighs the likely benefit of the discovery.

The confidentiality and trade-secret objections do not justify withholding all responsive documents. Responsive confidential material may be designated under the existing confidentiality order. To the extent Zededa withholds documents on the basis of attorney-client privilege or attorney work product, it shall provide sufficient information to permit evaluation of the asserted privilege, including a privilege log as appropriate.

The motion is GRANTED as to Requests for Production Nos. 21 and 22. Zededa shall serve further code-compliant written responses and produce all nonprivileged responsive documents, subject to appropriate confidentiality designations. Zededa shall provide a privilege log for responsive documents withheld on attorney-client privilege or attorney-work-product grounds.

X. Requests for Production Nos. 24, 26, 28, 30, and 32

Request for Production No. 24 seeks documents relating to customization of Vendor Software specifically for VMware. Request for Production No. 26 seeks documents relating to customization of Vendor Hosted Services specifically for VMware. Request for Production No. 28 seeks documents relating to customization of Vendor Documentation specifically for VMware. Request for Production No. 30 seeks documents relating to customization of Vendor Software to satisfy Product Requirements. Request for Production No. 32 seeks documents relating to customization of Vendor Hosted Services to satisfy Product Requirements.

Zededa asserted objections including privilege, confidential business information, cumulative or duplicative, vagueness, lack of reasonable particularity, oppression, assumption of facts not in evidence, and subparts.

Good cause exists for the requested production. Zededa's claims place customization, performance, work performed, personnel, costs, and damages at issue. The requests seek documents directly bearing on what work was performed, when it was performed, by whom, and in connection with which alleged requirements. The requests are tied to the products, services, documentation, and Product Requirements placed at issue by Zededa's claims.

Zededa has not made a sufficient factual showing to support its burden, oppression, overbreadth, or cumulative objections. Nor do the privilege and confidentiality objections justify a categorical refusal to produce responsive documents. Confidential materials may be designated under the existing confidentiality order, and documents withheld on attorney-client privilege or attorney-work-product grounds shall be identified sufficiently to permit evaluation of the asserted privilege, including by privilege log where appropriate.

The motion is GRANTED as to Requests for Production Nos. 24, 26, 28, 30, and 32. Zededa shall serve further code-compliant written responses and produce all nonprivileged responsive documents, subject to appropriate confidentiality designations. Zededa shall provide a privilege log for responsive documents withheld on attorney-client privilege or attorney-work-product grounds.

XI. Monetary Sanctions

Broadcom requests monetary sanctions based on 12 hours of attorney time at an hourly rate of \$605, for a total of \$7,260, including time incurred and anticipated in connection with the motion. Zededa requests monetary sanctions against Broadcom in the amount of \$9,000.

Broadcom substantially prevailed on the motion. The Court finds that Zededa's incomplete and nonresponsive responses and unsupported objections required Broadcom to incur reasonable expenses in bringing the motion. The Court does not find that Zededa acted with substantial justification, or that other circumstances make an award of sanctions unjust.

The Court nevertheless finds that the full amount requested is not warranted. Zededa provided some substantive supplemental responses, certain deficiencies involved correctable numbering issues, and its objections concerning confidentiality and trade-secret protection presented colorable issues, although they did not ultimately justify withholding the discovery ordered herein. The Court also declines to award fees for anticipated time that has not yet been incurred.

The Court finds that \$6,000 is a reasonable amount of monetary sanctions under the circumstances.

Accordingly, Broadcom's request for monetary sanctions is GRANTED IN PART. Zededa Inc. shall pay monetary sanctions to Broadcom Inc., through its counsel of record, in the amount of \$6,000, within 30 days after service of notice of entry of this Order.

Zededa's request for monetary sanctions against Broadcom is DENIED.

XII. Order

For the foregoing reasons, IT IS HEREBY ORDERED:

1. Broadcom's motion to compel further responses to Special Interrogatories, Set One, Nos. 46 through 67, is GRANTED.

2. Broadcom's motion to compel further responses to Requests for Production of Documents, Set One, Nos. 21, 22, 24, 26, 28, 30, and 32, is GRANTED.
3. Zededa shall serve further verified responses to Special Interrogatories Nos. 46 through 67, consistent with this Order, within 20 days after service of notice of entry of this Order.
4. Zededa shall serve further code-compliant written responses to Requests for Production Nos. 21, 22, 24, 26, 28, 30, and 32, consistent with this Order, within 20 days after service of notice of entry of this Order.
5. Zededa shall produce all nonprivileged responsive documents within 20 days after service of notice of entry of this Order, subject to appropriate confidentiality designations under the existing confidentiality order.
6. For any responsive documents withheld on the basis of attorney-client privilege or attorney work product, Zededa shall provide a privilege log within 20 days after service of notice of entry of this Order, to the extent a privilege log is required.
7. Zededa may designate responsive information and documents as confidential under the existing confidentiality order where appropriate and in good faith.
8. Broadcom's request for monetary sanctions is GRANTED IN PART. Zededa Inc. [and/or its counsel] shall pay monetary sanctions to Broadcom Inc. in the amount of \$6,000.00 within 30 days after service of notice of entry of this Order.
9. Zededa's request for monetary sanctions against Broadcom is DENIED.

IT IS SO ORDERED.

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Calendar Line 7

Case Name: *Dominique Hermsdorff v. Cy4DataLabs, Inc., et al.*

Case No.: 25CV472884

Plaintiff Dominique Hermsdorff (“Plaintiff”) alleges causes of action against Defendants Cy4DataLabs, Inc. (“Cy4Data”), Todd Carper (“Carper”),¹ Lance L. Smith (“Smith”) (collectively, “Defendants”), and Does 1 through 20, inclusive. Presently before the court is Defendants’ demurrer (“Demurrer”) to Plaintiff’s First Amended Complaint (“FAC”).

I. BACKGROUND

Plaintiff alleges that in early 2019, Carper recruited Plaintiff to develop “a new encryption tool that contemplated high levels of security through the use of advanced encryption keys and data handling and storage systems.” (FAC, ¶ 9.) Plaintiff alleges he entered an oral contract with Defendants in which Carper and Smith agreed that “in exchange for [Plaintiff’s] development work ... [Plaintiff would] be made the third founder and receive a 25% equity shareholder of the business that would develop, market, and sell” the tool Plaintiff developed. (FAC, ¶ 10.) Carper contributed technical work to the tool and was responsible for the business’s administrative and legal matters, including incorporation and founder agreements. (FAC, ¶ 14.) Smith oversaw business development and strategies, and Carper and Smith together made joint decisions relating to organization, ownership, operations, and staffing. (*Ibid.*) Plaintiff worked full-time on the tool and “periodically approached Carper to formalize their agreement regarding [Plaintiff’s] founder status and equity ownership” in the business. (FAC, ¶¶ 15, 16.) Carper told Plaintiff that the paperwork would be done as soon as the business became an incorporated entity. (FAC, ¶ 16.) Plaintiff completed his work for the project in mid-2024. (FAC, ¶ 18.) Carper and Smith registered the business as Cy4Data and issued themselves equity. (FAC, ¶¶ 19, 20.) Defendants refused Plaintiff’s request to be named as a co-founder and given equity ownership. (FAC, ¶ 21.)

Plaintiff alleges causes of action for (1) breach of contract against Defendants Carper and Smith; (2) breach of contract against Defendant Cy4Data; (3) breach of the implied covenant of good faith and fair dealing against Defendants Carper and Smith; (4) promissory estoppel against Defendants Carper and Smith; (5) fraud (false promise)²; (6) failure to pay wages; (7) failure to pay overtime compensation; (8) failure to provide meal periods; (9) failure to provide required rest breaks; (10) failure to provide wage statements; (11) failure to pay wages on separation; (12) services rendered (*quantum meruit*); (13) unfair business practices. Defendants demurred to the FAC. Plaintiff opposes and Defendants filed a reply.³

II. DEMURRER

A. Legal Standard

¹ Plaintiff’s First Amended Complaint refers to both “Carper” and an unidentified “Carter.” The court will refer to Defendant Todd Carper as “Carper” and will assume the FAC’s references to “Carter” are to defendant Todd Carper.

² Causes of action five through thirteen are alleged against all Defendants.

³ Defendants filed ex parte applications seeking leave to file an overlength demurrer and reply. This court granted both.